

FIRST INFORMATION REPORT

(Under Sec.173 BNSS)

S.P.E.C.-II

1. District: PS: Year FIR No. Date
Chennai CBI, ACB, Chennai 2024 RC0322024A0016 26.10.2024
2. (1) Act: **PC Act** Section: 7
(as amended in 2018)
(2) Act: Section:
(3) Act: Section:
(4) Others Acts & Sections -
3. (a) Suspected Offence - Offence related to public servant being bribed.
(b) Day Date Time
From 18.09.2024
(c) Information received at PS: CBI, ACB, Chennai dated: 07.10.2024
Entry No. Date Time
5 26.10.2024 1115 Hrs
4. Type of information: written Complaint
5. Place of occurrence: Dharmapuri, Tamilnadu.
(a) Direction & Distance from PS --- Beat No. ---
(b) Address ---
(c) In case, outside the limit of this Police Station, then
Name of PS --- District ---
6. Complainant / Informant.
(a) Name Shri V Ramachandran
(b) Father's/Husband's Name Shri Vedyappan
(c) Date of Birth ---
(d) Nationality Indian


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(e) Passport No. -NA Date of Issue-NA Place of issue -NA

(f) Profession **Proprietor, M/s NVN Steel and Hardwares**

(g) Address **No.3/331-I, Kamarajar Nagar, Balajangamanahalli Road, Nallampalli Taluk, Dharmapuri – 636807**

7. Details of known/suspected/unknown accused with full particulars
(Attached separate sheet, if necessary)

(1) **Shri Annadurai, Superintendent, GST & Central Excise, Dharmapuri, Tamilnadu.**

(2) **Shri Karthikeyan, Inspector, GST & Central Excise, Dharmapuri, Tamilnadu.**

8. Reasons for delay in reporting by the complainant/informant.

This case is registered after obtaining consent under Section 6 of the DSPE Act, 1946 from the Government of Tamil Nadu vide G.O. (2D) No.320 dated 22.10.2024.

9. Particulars of properties Stolen (Attach separate sheet, if necessary)

10. Total value of property stolen

11. Inquest Report/U.D. Case No., if any,

12. First information contents (Attach separate sheet, if required)

A written complaint has been made by Shri V Ramachandran (Complainant), S/o Shri Vedyappan, Proprietor, M/s NVN Steel and Hardwares, No.3/331-I, Kamarajar Nagar, Balajangamanahalli Road, Nallampalli Taluk, Dharmapuri, Tamilnadu 636807 to The DIG, CBI, ACB, Chennai on 07.10.2024 against Shri Annadurai, Superintendent of GST and Central Excise, Dharmapuri Range and Shri Karthikeyan, Inspector, CGST and Central Excise, Dharmapuri, Range for demand of Rs. 4,00,000/- and demand of Rs. 10,000/- additionally on monthly basis as undue advantage for dishonest and improper performance of public duty in the matter of scrutiny of GST returns filed by the

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complainant in the name of his proprietary firm M/s NVN Steel and Hardwares, Dharmapuri, Tamilnadu.

The complainant alleged that on 29.08.2024 Shri Annadurai, Superintendent of GST & Central Excise contacted the complainant from his mobile number 6369561588 and informed the complainant to come to his Office immediately. Accordingly, the complainant met Shri Annadurai at the First floor of the O/o Superintendent of GST & Central Excise, Dharmapuri and the complainant was introduced to Shri Karthikeyan, Inspector of GST & Central Excise working in the O/o Superintendent of GST & Central Excise, Dharmapuri who is dealing with the GST File of proprietary firm M/s NVN Steel and Hardwares, Dharmapuri, Tamilnadu of the complainant. The complainant was directed to come again on the same day evening along with his auditor Shri Durairaj. Accordingly, the complainant along with Shri Durairaj, Auditor met Shri Annadurai, Superintendent and Shri Karthikeyan, Inspector at about 18.30 Hrs on 29.08.2024 at the O/o Superintendent of GST & Central Excise, Dharmapuri when Shri Annadurai, Superintendent and Shri Karthikeyan, Inspector informed the complainant and Shri Durairaj, Auditor about mismatch in input tax credit of GST Filings of M/s NVN Steel and Hardwares and further informed Shri Durairaj, Auditor to recheck the input tax credit statement and to resubmit in two days. Shri Annadurai, Superintendent visited M/s NVN Steel and Hardwares on 07.09.2024 to verify the bills and other details and directed the complainant to sign a declaration form w.r.t visit of Shri Annadurai at his business premises on 07.09.2024 and also directed the complainant to arrange two witnesses for the same. The complainant arranged Shri Durairaj, Auditor and Shri Saravana Kumar for the same.

Further, on 18.09.2024, Shri Annadurai, Superintendent of GST & Central Excise has called the complainant to his Office from his mobile number 9943719561. Accordingly, the complainant and Shri Durairaj, Auditor visited the O/o Superintendent of GST & Central Excise, Dharmapuri and met Shri Annadurai. Shri Karthikeyan, Inspector of GST & Central Excise informed the complainant and Shri Durairaj, Auditor that the complainant firm was utilizing 100% of tax credits but not paying the taxes for profits earned and that the purchases and sales bills were fake. When the complainant

and Shri Durairaj, Auditor denied the same, Shri Annadurai, Superintendent informed that total tax liability would be around Rs. 1,50,00,000/- for FYs 2021-2022 and 2022-2023 and demanded Rs. 5,00,000/- and additionally Rs. 10,000/- on monthly basis as undue advantage from Shri V Ramachandran in lieu of not issuing GST notices against M/s NVN Steel and Hardwares, Dharmapuri. The complainant and Shri Durairaj, Auditor has requested Shri Annadurai, Superintendent to reconsider the matter to which Shri Annadurai, Superintendent reduced the bribe amount from Rs. 5,00,000/- to Rs. 4,00,000/- with first part payment of Rs. 2,00,000/- to be paid in two days and the remaining amount of Rs. 2,00,000/- after two months.

On 03.10.2024, Shri Annadurai, Superintendent of GST and Central Excise directed the complainant to meet him at Ranga Departmental Stores, Dharmapuri and the complainant along with Shri Durairaj, Auditor met Shri Annadurai at Ranga Departmental Stores, Dharmapuri on 03.10.2024. Shri Annadurai demanded the complainant for first part payment of undue advantage to which the complainant has not agreed. Shri Annadurai, Superintendent then demanded the complainant to pay the undue advantage of Rs. 4,00,000/- in part payments with first part payment of Rs. 1,00,000/- & six part payments of Rs. 50,000/- each per month and additionally Rs. 10,000/- on monthly basis thereon as undue advantage, to which the complainant has not agreed. Further, on night of 03.10.2024, Shri Durairaj, Auditor has informed the complainant that Shri Annadurai has contacted him and threatened to issue GST notice against the complainant firm.

Accordingly, on 04.10.2024, the complainant met Shri Annadurai, Superintendent of GST and Central Excise at O/o Superintendent of GST & Central Excise, Dharmapuri and Shri Annadurai threatened to issue notices to the complainant and reiterated his demand of Rs. 4,00,000/- and additional Rs. 10,000/- as undue advantage. Further, on 05.10.2024, Shri Annadurai again directed the complainant to meet him on 06.10.2024 and accordingly the complainant met Shri Annadurai at Dharmapuri on 06.10.2024. Shri Annadurai reiterated his demand of payment of first part payment of Rs. 1,00,000/- of total demanded undue advantage of Rs. 4,00,000/- in fifteen days. The complainant is


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not willing to pay the demanded undue advantage and hence made a complaint to the CBI, ACB, Chennai on 07.10.2024.

The complaint and subsequent verification prima facie discloses commission of offence punishable u/s 7 of PC Act 1988 (as amended in 2018) on the part of Shri Annadurai, Superintendent of GST and Central Excise, Dharmapuri Range and Shri Karthikeyan, Inspector, CGST and Central Excise, Dharmapuri, Range. Further, on the basis of request made by CBI, ACB, Chennai, The Government of Tamilnadu vide G.O. (2D) No.320 dated 22.10.2024 has accorded its consent u/s 6 of DSPE Act, 1946.

Therefore, a regular case u/s 7 of PC Act 1988 (as amended in 2018) is registered against Shri Annadurai, Superintendent of GST and Central Excise, Dharmapuri and Shri Karthikeyan, Inspector, CGST and Central Excise.

13. Action take: Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

(1) Registered the case and took up the investigation or:

Registered a Regular Case.

(2) Directed (Name of IO) Rank Took up for investigation

Shri D.Chandrasekharan, Dy.SP,CBI, ACB, Chennai.

(3) Refused investigation due to or

(4) Transferred to PS District on point of jurisdiction

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

14. Signature/Thumb Impression
of the complainant/informant

Signature of Officer in-charge
Police Station

Name: **P Murugan, IPS**

Rank: **Dy. Insp. Genl. Of Police &
HoB, CBI:ACB:CHENNAI.**

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15. Date and time of dispatch to the Court

26.10.2024 13.00Hrs.

P. Murugan
26/10/24

(P MURUGAN, IPS)
DY.INSPR.GENL.OF POLICE
& HEAD OF BRANCH
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To:

The Hon'ble II Additional District Judge (CBI Cases), Coimbatore

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Attachment to item 7 of First Information Report

S.No.	(Sex)	Date/Year of Birth	(Built)	(Height) (in cms)	(Complexion)	(Identification Mark/s)
1	2	3	4	5	6	7

(Deformities/ peculiarities)	(Teeth)	(Hair)	(Eye)	(Habits)	(Dress Habit/s)
8	9	10	11	12	13

(Language / Dialect)	(Burn Mark)	(Leucoderma)	(Mole)	(Scar)	(Tattoo)
14	15	16	17	18	19

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

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